

1. Line 264 through 269:

264 (B) an associate broker;
265 (C) a sales agent;[and]
266 (D) a dual broker; and
267 [~~(D)~~](E) on or after ~~§~~→ ~~July 1, 2026~~January 1, 2027 ←~~§~~ , a property
267a manager;
268 (ii) registration of:
269 (A) an entity;

2. Line 562 through 570:

562 of hours designated by rule the commission makes in accordance with Title
563 63G, Chapter 3, Utah Administrative Rulemaking Act, with the concurrence of
564 the division.
565 (iii) (A) On or after ~~§~~→ ~~July 1, 2026~~January 1, 2027 ←~~§~~ , except as
565a provided in Subsection (1)(d)(iii)(B),
566 the division shall require that an applicant for a property manager license
567 complete the educational program described in Subsection (1)(d)(iv).
568 (B) On or after ~~§~~→ ~~July 1, 2026~~January 1, 2027 ←~~§~~ , if on the day on
568a which an applicant for a property
569 manager license applies for the license, the applicant is licensed as a property
570 manager in another state, the division may require the applicant to complete a

3. Line 605 through 610:

605 of the examination; or
606 (C) the division determines the applicant has good cause for the modification of
607 the examination.
608 (iv) On or after ~~§~~→ ~~July 1, 2026~~January 1, 2027 ←~~§~~ , an examination for a
608a property manager license shall:
609 (A) cover the topics that appear in the educational program described in
610 Subsection (1)(d)(iv); and

4. Line 651 through 656:

651 (ii) An applicant who is denied licensure pursuant to this Subsection (6) may seek
652 agency review by the executive director only after the commission has reviewed
653 the division's denial of the applicant's application.

654 (7) On or after ~~July 1, 2026~~January 1, 2027 ~~←~~§, an individual with an active
654a broker, associate broker, or sales
655 agent license may obtain a property manager license without:

656 (a) meeting the education requirement described in Subsection (1)(d)(iii); or

5. *Line 845 through 853a:*

845 the property manager performs real estate-related services is affiliated; or

846 (b) the person that the individual's employer or the person with whom the individual
847 contracts is affiliated.

848 (8) An individual is not required to affiliate with a principal broker if ~~§~~→ the individual is ~~←~~§ :

849 (a) ~~§~~→ [{ the individual is }] ~~←~~§ licensed as a property manager under this chapter; and

850 (b) (i) ~~§~~→ [{ is }] ~~←~~§ not subject to the affiliation requirements described in Subsection (6);

851 (ii) ~~§~~→ [{ is }] ~~←~~§ employed by a property management company that managed at least

851a 750

852 residential rental units in this state in any of the three previous calendar years; or

853 (iii) ~~§~~→ [{ is }] ~~←~~§ employed by a housing authority, as that term is defined in Section

853a 35A-8-401.

6. *Line 985 through 995:*

985 (4) Except as provided in Subsection (5), [~~a property manager who obtains and holds a~~
986 ~~security bond that protects at least 30% of the estimated property management client~~
987 ~~funds is not required to maintain the estimated property management client funds in a~~
988 ~~trust account.]a ~~§~~→ [{ property manager }]brokerage ~~←~~§ is not required to maintain~~

988a the property management

989 client funds in a trust account if:

990 (a) the property owner agrees in the property management agreement that the ~~§~~→ [{ }

990a { property }] ~~←~~§

991 ~~§~~→ [{ manager }]brokerage ~~←~~§ is not required to hold property management

991a client funds in a trust account;

992 and

993 (b) a lease agreement states that the ~~§~~→ [{ property manager }]brokerage ~~←~~§ is not

993a required to hold property

994 management client funds in a trust account.

995 (5) A property manager who is affiliated with a principal broker shall keep property